

The Law of Ukraine
On Pre-School Education

Date of Entry into Force:
August 2, 2001

This Law defines legal, organizational and financial principles of functioning and development of the system of pre-school education which ensures development, upbringing and education of a child, is based on the combination of family and public upbringing, the progress of national science, achievements of world pedagogical experience, facilitates forming values of democratic legal society in Ukraine.

According to the Law, pre-school education is an obligatory primary constituent of the system of continuous education in Ukraine. Pre-school education is an integral process aimed at the following:

- providing comprehensive development of a child of pre-school age in accordance with his/her inclinations, individual, psychic and physical capabilities and cultural needs;
- forming moral norms for child of pre-school age and gaining life social experience by him/her.

Pre-school age is a basic stage of physical, psychological and social formation of a child's individuality.

The Law singles out the following periods of pre-school age:

- infants;
- junior pre-school;
- middle pre-school;
- senior pre-school.

According to Article 5 of the Law, the system of pre-school education consists of the following:

- pre-school educational;
- scientific and methodical institutions;
- education management bodies;
- education and upbringing in a family.

The Law stipulates that a family shall help a child to get education in pre-school and other educational institutions or provide pre-school education at home. Attendance of a pre-school institution by a child does not free the family from obligation to raise, develop and teach the child in the family. Parents or person who are acting as parents are responsible to the society and the state for the development, upbringing and education of children and also preserving of their life, health and human dignity. Ukrainian citizens regardless of race, skin color, political, religious and other beliefs, sex, ethnic and social origin, material state, place of residences, language or other characteristics have the right to get pre-school education in pre-school educational institutions regardless of their subordination, types and forms of ownership, as well as in a family.

According to Article 11 of the Law, a pre-school educational institution is an educational institution that provides exercise of a child's right to get pre-school education, his/her physical, mental and

spiritual development, social adaptation and readiness to continue education. Pre-school educational institutions can be of state, municipal and private ownership forms. The activity of private pre-school educational institution is subject to licensing. The Law stipulates the following types of pre-school educational institutions:

- day nursery;
- day-nursery-kindergartens;
- kindergartens;
- day-nursery-kindergartens of compensating type;
- orphanages;
- kindergartens of a boarding-school type;
- day-nursery of a family type;
- day-nursery of a combined type;
- centers of child development;
- orphanages of a family type.

The management of the system of pre-school education is performed by:

- specially authorized central body of executive power in the field of education and science;
- other central bodies of executive power to which pre-school educational institutions are subordinated;
- the Council of Ministers of the Autonomous Republic of Crimea;
- oblast, Kyiv and Sevastopol city, district administrations and subordinated to them management bodies, which manage pre-school educational institutions;
- bodies of local self-government.

The procedure for planning activity of a pre-school educational institution and requirements for the content of pre-school education are established by Chapter IV.

The participants of educational process in the sphere of pre-school education are as follows:

- children of pre-school age, teachers, pupils;
- directors (managers), deputy directors (managers) on educational work, tutors, teachers-methodologists, senior tutors, teachers, teachers-defectologists, teachers-speech therapists, practical psychologists, social teachers, instructors of labor, instructors on physical education, instructors of auditory class, music teachers, heads of groups, studios, clubs, other forms of collective work and other specialists;
- assistant teachers and nannies in orphanages, day nurseries and day-nursery-kindergartens;
- medical men;
- parents or persons, acting as parents;
- parents-tutors of orphanages of family type;
- natural persons, who provide educational services in the sphere of pre-school education in case they have a license.

According to Article 28 of the Law, a child has guaranteed by the state right to the following:

- free pre-school education in state and municipal pre-school educational institutions;
- safe and harmless for health conditions of support, development, upbringing and education;
- protection from any information, propaganda and agitation, which damages their health, moral and spiritual development;

- free medical care in state and municipal pre-school educational institutions;
- protection from any forms of exploitation and actions that could harm child's health, as well as from physical and psychological violence, humiliation of their dignity;
- healthy way of life.

Pre-school educational institutions are financed by their founders.

The Law also regulates the issues on social security of children of pre-school age and healthcare of children in a pre-school educational institution.